

consideratum fuit per præd' censores, that for his disobedience and contempt he should be amerced to 10l. and that he should be arrested and committed to custody; and afterward, November 7, 1606, the said Thomas Bonham, at their assembly came before the president and censors, and they asked him if he would satisfy the college for his disobedience and contempt, and submit himself to be examined, and obey the censure of the college, who answered, that he had practised and would practice physic within London, *nulla a collegio petita venia*, and that he would not submit himself to the president and censors; and affirmed, that the president and censors, had no authority over those who were doctors in the university; for which cause, the said four censors, *sc.* Dr. Turner, Dr. Moundford, Dr. Argent, and Dr. Dun, then being censors or governors, *pro offensis et inobedientia præd' adtunc et ib' ordinaverunt et decreverunt, quod præd' Thomas Bonham in carcerem mandaretur ib' remansur' quousque abinde per præsident' et censores, seu gubernatores collegii præd' pro tempore existen' deliberaretur*, and there then by their warrant in writing, under their common seal, did commit the plaintiff to the prison of the Compter of London, &c. *absque ballio sive manucapt' ad custagiam et oner ipsius Thomas Bonham, donec præd' Thomas Bonham per præcept' præsident' et censor' collegii præd' sive successor' suor' liberatus esset*; and Dr. Atkins then president, and the censors, and Bowden and Taylor as their servants, and by the commandment of the said president and censors, did carry the plaintiff with the warrant, to the gaol, &c. which is the same imprisonment. The plaintiff replied and said, that by the said Act of 14 H. 8. it was further enacted, "And where that in the dioceses of England, out of London, it is not like to find always men able sufficiently to examine (after the statute) such as shall be admitted to exercise physic in them, that it may be enacted in this present Parliament, that no person from henceforth be suffered to exercise or practise physic through England, until such time that he be examined at London by the said president and three of the said elects, and to have from them letters testimonial of their approving and examination, except he be a graduate of Oxford or Cambridge, which have accomplished all things for his form without any grace:" and that the plaintiff, anno Dom. 1595, was a graduate, *sc.* a doctor in the University of Cambridge, and had accomplished all things concerning his degree for his form without (a) grace, by force whereof he had exercised and practised physic within the City of London until the defendants had imprisoned him, &c. upon which the defendant demurred in law. And this case was often [116 a] argued by the Serjeants at Bar in divers several terms; and now this term the case was argued by the justices, and the effect of their arguments who argued against the plaintiff (which was divided into three parts) shall be first reported. The first was, whether a doctor of physic of the one university or the other be by the letters patent, and by the body of the Act of 14 H. 8. restrained from practising physic within the City of London, &c. The second was, if the exception of the said Act of (b) 14 H. 8. has excepted him or not. The third was, that his imprisonment was lawful for his said disobedience. And as to the first, they relied upon the letter of the grant, ratified by the said Act of 14 H. 8. which is in the negative, *sc. nemo in dicta civitate, &c. exerceat dictam facultatem nisi ad hoc per prædict' præsidentem et communiatem, &c. admissus sit, &c.* And this proposition is a general negative, and (a) *generale dictum est generaliter intelligendum*; and *nemo* excludes all; and, therefore, a doctor of the one university or the other is prohibited within this negative word *nemo*. And many cases were put where negative statutes shall be taken *stricte et exclusive*, which I do not think necessary to be recited here. Also they said, that the statute of (b) 3 H. 8. c. 11. which in effect is repealed by this Act of (c) 14 H. 8. has a special proviso for the Universities of Cambridge and Oxford, which being here left out, doth declare the intention of the makers of the Act, that they did intend to include them within this general prohibi-

(a) 2 Brownl. 201, 202.

(b) 14 & 15 H. 8. cap. 5.

(a) 11 Co. 59 a. Co. Lit. 36 a. 2 Inst. 81. Hard. 305.

(b) Rastal. Physician 1.

(c) 14 & 15 H. 8. c. 5. 1 Roll. 598. 4 Inst. 251. Rastal. Physician 3. 2 Bulstr. 185. Lit. Rep. 168, 169. 172. 212. 215. 246, 247, 248, 249. 1 Jones 261. Cr. Jac. 121. 159, 160. Cr. Car. 256. Palm. 486. Cart. 115.